

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 03/10/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-06679

CASE NAME: DISCOVER BANK VS. GERALD GILCHRIST

*HEARING ON MOTION IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY DEF COUNSEL ON 1/6/26

FILED BY: GILCHRIST, GERALD

TENTATIVE RULING:

Background

Counsel for Defendant has filed a motion to be relieved as counsel. The defendant was properly noticed. Counsel cites a breakdown in relationship.

Disposition

The court will require an in camera examination of counsel concerning the breakdown in the relationship between counsel and his client.

Counsel for Defendant is to appear in court, either in person or remotely, on 3/10/26.

2. 9:00 AM CASE NUMBER: L24-02704

CASE NAME: LVNV FUNDING LLC VS. NICOLE MUNOZ

*HEARING ON MOTION IN RE: MOTION TO VACATE DEFAULT JUDGMENT (CONTINUED FROM 1/20/26)

FILED BY: MUNOZ, NICOLE

TENTATIVE RULING:

Background

Defendant filed a Motion, on 12/18/25, to vacate the Default Judgment. The Default Judgment was filed on 9/3/25.

Notice of this Motion was timely filed on Plaintiff.

The Motion is unopposed.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant do not receive actual notice of the process.

Plaintiff filed a proof of service on 5/6/24, reflecting that a process server completed substituted service, on 5/5/24, on a woman at the address that Defendant had apparently used in 2021 (312 N. Wildwood, Hercules), which was reflected on a credit card billing statement attached to the Complaint. The service was done by a registered process server, which raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

However, Defendant, in her Motion, declared that she had not been living at the Hercules address in 2024, and provided a utility bill from 2022 and 2023, reflecting an address in Pleasant Hill.

This court finds that the presumption has been rebutted.

Disposition

Defendant's Motion is Granted.

Defendant to file an Answer to the Complaint within 30 days of this Order.

Defendant to file the Order.

3. 9:00 AM CASE NUMBER: L24-07111

CASE NAME: CITIBANK, N.A. VS. DIANA HENDERSON

*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT

FILED BY: CITIBANK, N.A.

TENTATIVE RULING: